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RAMNATH GOENKA

◆ IN 1932 ◆

BECAUSE THE TRUTH INVOLVES US ALL

Bar Council breaks law to crawl, its chief must go

THE BAR COUNCIL of India has rolled back its illegal, arbitrary and overreaching direction to State Bar Councils to not enrol 2026 graduates of NALSAR University of Law, Hyderabad. But that cannot, and should not, be the end of the matter. It is necessary to rewind and pause on the now-withdrawn decision — to see how it combines a repressive reading of citizens' fundamental rights with an overblown understanding of the restrictions that can be imposed on them; how the BCI arrogates to itself powers that are not, by law, vested in it; how the institutional failure of the Bar to hold up its end undermines the justice delivery system. The BCI's attempt to impose blanket restrictions and administer collective punishment on an entire batch of law students came after about 450 students of NALSAR objected to Chief Justice of India Surya Kant attending their convocation as chief guest — earlier, a remark by the CJI had become the trigger for the formation of the Cockroach Janta Party, and another comment on the students' protests subsequently seemed to underline perceptions of the Court's insensitivity. On Friday, CJI Surya Kant himself snubbed the BCI: "It's a dialogue between students and me. Who are they (BCI) to unnecessarily raise an issue?" The CJI's rebuke is welcome and reassuring. But the need remains urgent for the BCI to conduct an honest reckoning.

The BCI is mandated to regulate legal education, recognise law degrees, supervise State Bar Councils, exercise disciplinary jurisdiction over advocates. Its abortive bid to curb the freedom of expression of young citizens and cramp their right to disagree with a constitutional authority by blackballing them is a blatant misuse of its powers. The Advocates Act, 1961, under which the BCI was established as an independent statutory authority, provides a finite list of grounds for disqualification from enrolment — participation in a peaceful students' campaign is certainly not one of them. In its zeal to cosy up to the judicial and/or political establishment, the BCI ignores that the constitutional guarantee of free speech includes the right to protest peacefully, and that the SC has laid down that restrictions must be tailored narrowly. The attempt to silence budding advocates is especially jarring in the aftermath of the students' protests — it shows an institution that has not learnt any lessons from the movement on the street.

The CJI's rebuke isn't enough. BCI chairman Manan Kumar Mishra has embarrassed himself and undermined the institution he leads. The attempt, on his watch, to intimidate tomorrow's bar and, indeed, the bench, to shrink the spirit of tomorrow's court, calls for a course correction that can only begin with his exit. If the Bar Council needs to do justice to its mandate, Mishra must go.

Kerch Strait warning, a call for vigilance

IN MARCH 2022, the FAO's benchmark food price index hit an all-time high, following Russia's full-scale invasion of Ukraine. More than four years later, those fears of a global food crisis have revived with an escalation of two-way strikes on ports, grain terminals and cargo vessels across the Black Sea, Kerch Strait and Sea of Azov. From an agricultural trade perspective, the intensified tensions in this region arguably pose a greater threat today than the conflict in West Asia. The world has somewhat adjusted to the supply disruptions from the blockade of the Strait of Hormuz. This was also the case with Russia-Ukraine, where the initial cycle of major missile and drone exchanges had given way to a gradual resumption of grain shipments.

That period of relative calm has been shattered by the effective halting of operations in the Greater Odesa port complex that handles about 90 per cent of Ukraine's agricultural produce exports. More than 80 per cent of Russia's grain exports move through ports on the Sea of Azov and the Black Sea, which have all again been targets of Ukrainian attacks. The resultant paralysis of export trade can spill over into a global food supply crisis similar to that in 2022. Russia and Ukraine together account for over a quarter of the world's wheat exports, with these shares at roughly 15 per cent in corn and barley and 60 per cent-plus for sunflower oil. Past supply shocks show these spreading from one commodity to another; when sunflower oil becomes scarce, it drives up soyabean and palm oil prices, too.

Those risks are also magnified through the interactions of different "systems" — in the present scenario, that would include both wars (Russia-Ukraine and US-Iran) and weather (El Niño and European heatwaves). A perfect storm from such interactions cannot be ruled out. All the more reason for policymakers to stay vigilant. The Modi government can be credited with reasonably insulating Indian consumers and farmers from the shortages in transport fuels, LPG, LNG and urea triggered by the West Asia war. Similar supply-side management may be required if the Kerch Strait becomes no less a cause for concern than Hormuz.

The historian who looked from the margins

IN *Essays of a Lifetime: Reformers, Nationalists, Subalterns*, Sumit Sarkar writes: "As the shining promise at the dawn of Independence began to dim by the late 1960s and early '70s, and as a new wave of popular struggles began in various forms against the post-colonial ruling classes, I felt it was more important to explore the historical limits of mainstream nationalism". Sarkar, who died on Thursday, did not focus just on nationalist icons. He explored the textures of the lives of farmers, workers, lower caste and class communities.

Sarkar entered academia when modern Indian history was still largely framed through the binary of colonial oppression versus Indian resistance. From his first major work, *The Swadeshi Movement in Bengal*, he demonstrated how ordinary people could be both hierarchical and democratic, communal and nationalist. This commitment to history from below found its most eloquent expression in *Modern India*, the textbook that helped make him one of the founding figures of Subaltern Studies. Sarkar would eventually distance himself from the group as it increasingly turned towards cultural theory. The historian, he believed, had to take the challenge of communalism head-on.

Sarkar the historian was inseparable from the public intellectual who refused to submit to doctrine. The teacher, whose classes in Delhi University brought alive the possibilities of Marxist social history, would return the Rabindra Puraskar in protest against West Bengal's Left Front government's treatment of the Nandigram protest. As history textbooks continue to be "streamlined" and "rationalised", Sarkar's words in *Essays of a Lifetime* resonate: "So far, we Indian historians have written the histories that we wanted to write, following no agenda but our own. That seems to be a fast-vanishing luxury."

The nationalism that evokes pride, the nation we are

INDEPENDENCE DAY discourses, speeches and poetry oscillate between, to borrow Freudian terms, the pleasure principle and the reality principle. The pleasure principle is the affirmation of India's grandeur. It offers, like all nationalisms, a vicarious sense of pride, achievement and hope. No political project, especially a nation, can thrive without a sense of pride, the mechanism by which we produce identification with a people or a cause. It is difficult for a politician to be successful without evoking pride, self-belief, and even a sense of romance. Anger and a sense of injustice only get you so far in politics. But almost as a counter-reaction, there is the temptation to counter the pleasure principle with the reality principle: What is the actual state of the nation?

The Hindi poet Raghuvir Sahay was the master of this. In his poem 'Adhinayak', he captures the three standard counters used by the reality principle: Authoritarianism, material deprivation and the maintenance of illusion. He poignantly asked: Who is the Adhinayak who makes us sing these praises? Harcharan, the ordinary impoverished citizen, is conditioned to sing the national anthem, without either true freedom or prosperity. The conditioning is to keep up appearances, to go through the liturgical motions of nationalism, keeping the illusion alive for the rulers that all is well. We are asked to sing its songs but are not allowed to speak in our own voices.

Nissim Ezekiel, in 'The Patriot', used exaggerated Indian English to mock the superficial nationalism during the Emerg-

ency. The remarkable thing is that every single theme he touched on in 1977 still applies almost verbatim. The first is the gap between the professed fidelity to tradition and actual conduct: The profession of non-violence and paeans to Gandhi do not abate the violence. But how much of the adherence to tradition is performative? "Ancient Indian Wisdom is 100% correct/ I should say even 200% correct/ But modern generation is neglecting — / Too much going for fashion and foreign thing." There is a reference to unrest: "Other day I'm reading newspaper/ (Every day I'm reading Times of India/ To improve my English Language/ How one goonda fellow/ Threw stone at Indirabehn/ Must be student unrest fellow, I am thinking." The discerning citizen reads the *goonda* as student unrest.

The conversion of a student-unrest fellow into a *goonda* is the alchemy of the authoritarianism and coercion of Emergency, gestured at in the next lines: "Lend me the ears — / Everything is coming/ Regeneration, Remuneration, Contraception." There is the genuine concern of the Patriot: "What you think of prospects of world peace? Pakistan behaving like this/ China behaving like that/ It is making me really sad/ I am telling you/ Really, most harassing me." There is a mocking pun on abstinence being mistaken for complete virtue: "I'm the total teetotaler/ completely total." And then there is the poignant: "One day Ram Rajya is surely coming." This very Indian formulation manages to combine complete certainty



PRATAP BHANU MEHTA

India is great because now we have to learn to speak of ourselves as great, and the more bombast with which we speak, the more evidence we have of our greatness

An I-Day wish for my daughter



PADMAPRIYA JANAKIRAMAN

ON THIS day in 1947, Jawaharlal Nehru promised the country dignity and opportunity, adding that the pledge would be redeemed "not wholly or in full measure, but very substantially". Seventy-nine years on, it's worth asking: Which part of that promise did Indian women actually receive?

Simone de Beauvoir wrote that one is not born a woman but made one. In Indian households, this translates into daily instructions: Sit properly, do not laugh loudly, that job is not for you, ask permission. NO. Shh.

This year, I didn't just read that sentence, I lived it. Revathy, a fellow actor, and I resigned from an actors' association in Kerala we'd belonged to for years. Walking away was self-respect. What lingered was the harder question: What does independence mean if you can enter a room but never get to run it?

The issue isn't only that women don't get to run the rooms they enter. It's that we haven't fully entered most rooms that matter. India produces the world's highest share of female STEM graduates, yet only 27 per cent reach the STEM workforce. Women hold under 30 per cent of teaching posts in central universities. Among senior advocates, women constitute 3.4 per cent. Women hold just 13 per cent of key department-head roles in entertainment, and at India's leading newspapers, 87 per cent of editors and proprietors are men.

Kerala's reckoning makes the point better than any statistic: Be it the Hema Committee report or the allegations and cases that continue to surface across universities, the music industry and cultural institutions. Different stages, same script, same silence beforehand.

On the rare occasion a woman reaches the top of her field, another ceiling awaits. An actress can become the biggest star in her industry and still find the door to directing and producing shut, unlike a male co-star with a fraction of her following. A sportswoman can lead her country to a World Cup and still have little say in how her federation is run.

Somewhere between being visible and being in charge, female ambition gets re-labelled: Difficult, too emotional, not a team player. Expected to absorb it quietly, she gets a word for it when she does: Resilient. We should be less impressed by

how well women endure and more curious about why endurance keeps being the job requirement.

I read an essay this year by a woman describing the 13 years her assault case was in court, how she was sorted endlessly into victim or liar, fragile or ambitious. A complicated person is harder for the system to process than a label. The recent acquittal in the wrestlers' harassment case belongs here too: A courtroom decides one man's guilt, but can't answer whether an athlete has real recourse when the person she complains about also controls her career.

Set against all this is the argument that our laws favour women who pose as victims. Researchers looking for evidence keep finding none. What exists, reliably, is a conviction rate for crimes against women, stuck around one in four, with 19 of 20 cases still in trial. A system rigged in our favour is doing an astonishingly terrible job of it.

The label problem got personal for me this year. A daughter arrived and turned one recently, and the news coverage fixated almost entirely and incorrectly on my age. Male actors, on the other hand, become fathers to celebratory headlines, not an audit of their birth certificates. It's the same old instinct of reducing a woman to a label easiest to print, skipping the part where she's an actual person.

Here is what freedom should mean this August 15 — walking home at the hour a brother does, without a lecture attached; unpaid work counted as work, not person-ality; being believed the first time, not the fourth. And for a one-year-old who joined this argument without being consulted, never having to be extraordinary just to receive the dignity that should have arrived with her birth certificate.

Beauvoir wrote: "Representation of the world, like the world itself, is the work of men; they describe it from their own point of view, which they confuse with absolute truth." She wrote that in a world still deciding whether women deserved a vote. It does not have to remain true by the time my daughter is old enough to read. That's the only inheritance worth arguing for this Independence Day.

The writer is an actor, producer and co-founder of the Women in Cinema Collective

(surely) with radical uncertainty (one day).

If the pleasure principle demands assurance, the reality principle has to confront the radical uncertainty. Looking at Independence Day speeches, it is quite remarkable how much uncertainty dominates them till Lal Bahadur Shastri's tenure. Jawaharlal Nehru's Independence Day speech in 1960 almost gives up on the pleasure principle in favour of the reality principle. It is all the more remarkable because this is before the war with China in 1962. Nehru reminds his audience that only two courses are open to India's destiny: "Either to hold our heads high and march forward or downfall if we are weak. There can be no middling status for us." This is meant to be a call for action. But then he immediately goes on to say, "However, this is not in my hands. You have made me Prime Minister for a few days so I am here. There are innumerable defects in me."

This could be false modesty, absolving himself from blame, or merely reminding his audience that the nation will not be made from declamations from on high. But then comes the mirror to the nation. Referring to India's Independence, Nehru said "After hundreds of years, India shone once again and the world heard her voice, which had a profound impact because it was the true inner voice of the nation. India began to be respected once again. But very soon the same people of India who had shown great courage seemed to revert to their own weaknesses and began to fight among them-

selves in the name of religion or caste, language and province. The world began to wonder if it had made a mistake in judging this nation." Shastri's first speech as Prime Minister was pithy and direct, this time confronting the fact that India was facing a potentially catastrophic food crisis.

In Nehru's speeches, the confrontation with fragility, vulnerability and uncertainty is central. There is the constant refrain that there are two dispositions that can keep India down. The first is pettiness. Pettiness is not the same as self-interest. Self-interest can at least be tied to prudence; pettiness is more destructive. It is almost as if Nehru is haunted by Gandhi's remark, that "our besetting sin is not our differences, it is our littleness". The second is fear. He writes: "Telling lies and deceit are all the offspring of fear."

Prime Minister Narendra Modi's speeches over the years have been varied. The Viksit Bharat framework has one virtue. It puts a timeline on Ram Rajya's arrival. Ezekiel's "one day" is 2047. But Modi is focused on satisfying the pleasure principle of nationalism. That has got trapped in its own circular logic. India is great because now we have to learn to speak of ourselves as great, and the more bombast with which we speak, the more evidence we have of our greatness. In 2014, the Swachh Bharat Abhiyan forcefully confronted India's filth. But alas for the reality principle, it seems like our national self-esteem has, since then, reached heights our municipal councils are yet to discover.

The writer is contributing editor, The Indian Express

I stood up for a fellow citizen. I would do it all over again



DEEPAK KUMAR

WHEN I look at our country today, I feel we have not truly achieved freedom. To me, freedom means a person can breathe freely. That they can live their life with their family, friends, and relatives without fear. That they can practise their religion and interact with their neighbours and society at large with dignity. In recent years, for our fellow Muslim citizens, that freedom has become increasingly harder to come by. This brings shame to our country and Constitution. Every community has sacrificed for India's independence. This country is made by all of us, it is of all of us, it belongs to us all. This is why I always stand up for my fellow countrymen. In January, I was celebrating Republic Day at a friend's shop when I noticed that seven to eight men from the Bajrang Dal had barged into the shop of an elderly man, Vakeel Ahmed, and started misbehaving with him over the name of his shop, claiming the word "Baba" belonged to Hindus alone. I tried to calm them down, but when that didn't work and they started asking me for my name, I said, "My name is Mohammad Deepak." It was to say to them: We are all Indians.

In the days that followed, Bajrang Dal members put up an Instagram post calling for all "Hindu" men to unite and teach me "a lesson". Another group of men claiming allegiance to the outfit reached Kotdwār from Dehradun. They hurled threats and abuses against my family in front of my gym. I am willing to die for my country, but when it comes to your family's safety, you are forced to think of the consequences. I have a five-year-old daughter, a wife, a mother. After the incident, my daughter couldn't go to school for some time. I was forced to stay inside my house for two-and-a-half months. My gym is my only source of income. I have a house loan and my daughter's school fees. Before the incident, my gym had 150-200 members; that has dropped to 40-42.

I do not believe these groups' actions represent the Hindu faith. Even as they accuse the "other" of being against Hinduism, it is they who muddy the name of our religion and gods. They do so by intimidating others and inflicting pain, disrespecting other religions and people in the name of our gods. "Hindus" aren't angry with me. Recently, I attended an event in Dehradun, attended mostly by Hindus. Nearly everybody came up to me and expressed appreciation for what I had done. I have received love and appreciation from people of all backgrounds, who have helped me at a very difficult time.

I have no regrets, and would do it all over again. As much as I have been harassed, whether by these groups or the police by way of an FIR and summons, I have also been blessed to witness more and more people speaking up for what is right. I see on social media now that when goons come to shut down shops, others resist. People tell me that by raising my voice, I have managed to dent the climate of fear.

Today, the Hindu-Muslim divide has become so deep I fear it will not leave people's hearts and minds in the foreseeable future. Governments are stoking hate for political gain. My country and its people are so much more than this. If there are wrongdoers, there is no paucity of those willing to stand up for the greater good. Change happens when people stop watching from the sidelines and start facing the situation. The time for that change has come.

The writer owns a gym in Uttarakhand

40 YEARS AGO

August 15, 1986



Sloop on Badal group

THE POLICE arrested more than 100 workers of the Akali Dal, led by Parkash Singh Badal, on the eve of the party's protest day. The arrests were made throughout Punjab to ensure peace during Independence Day celebrations in the state, official sources said.

Reforms proposed in tax laws

ACCEPTANCE OF self-assessed income-tax returns, increase in the basic general exemption for wealth tax from Rs 2.5 lakh to Rs 5 lakh and extension of benefit of deduction from taxable income to payments made towards cost of new residential property,

including repayment of loan and interest, are among the major proposals for simplification and rationalisation of direct tax laws. The Finance Ministry has also proposed exemption from tax on capital gains from transfer of agricultural land and from shifting of industrial undertakings from congested areas. Existing provisions resulting in computation of artificial or notional income are proposed to be deleted to get a new concept of the real income.

President's warning

THE PRESIDENT, Zail Singh, asked India to be vigilant over the known efforts by some external powers to take advantage of the situation

for disrupting the unity of the country.

SAARC call to fight terrorism

THE TWO-DAY meeting of the SAARC foreign ministers in Dhaka ended with condemnation of the act of terrorism and calling for concrete measures to fight the menace. The SAARC council of ministers in its first meeting since the launching of the forum in December last year accepted undisclosed recommendations of the study group on terrorism and asked the experts to report on measures of implementation to identify the offences which are to be regarded as terrorist and which, for purposes of extradition, are not to be regarded as political.